

HOUSE BILL NO. 193

INTRODUCED BY J. DARLING

A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING A SIGNATURE FOR VOTER REGISTRATION CANCELLATION; AMENDING SECTION 13-2-402, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 13-2-402, MCA, is amended to read:

"13-2-402. Reasons for cancellation. The election administrator shall cancel the registration of an elector if:

- (1) the elector submits a signed written request for cancellation;
- (2) a certificate of the death of the elector is filed or if the elector is reported to the election administrator as deceased by the department of public health and human services in the department's reports submitted to the county under 50-15-409 or through a newspaper obituary;
- (3) the elector is of unsound mind as established by a court;
- (4) the incarceration of the elector in a penal institution for a felony conviction is legally established;
- (5) a certified copy of a court order directing the cancellation is filed with the election administrator;
- (6) a notice is received from the secretary of state or from another county or state that the elector has registered in another county or state;
- (7) the elector:
 - (a) fails to respond to certain confirmation mailings;
 - (b) is placed on the inactive list; and
 - (c) then fails to vote in two consecutive federal general elections; or
- (8) the elector fails to meet any voter qualification that is listed in 13-1-111."

